

4	Ko vs. Newrez, LLC 2024-01400538	1. Demurrer to Amended Complaint Defendants William R. Jarrell and Aldridge Pite, LLP's Demurrer to the First Amended Complaint is OVERRULED as moot. Defendants were dismissed on 4/2/25. (ROA 104, 106.) Thus, the Demurrer must be overruled as moot. (See <i>JKC3H8 v. Colton</i> (2013) 221 CA4th 468, 477.)
5	Rodriguez vs. Career Networks Institute 2023-01322769	1. Demurrer to Amended Complaint The unopposed general demurrer of defendants Career Networks Institute, Inc., dba CNI College, and Anne Gonzales to the second amended complaint of plaintiff Gabriela Rodriguez is sustained in its entirety without leave to amend. Defendants Career Networks Institute, Inc., dba CNI College, and Anne Gonzales demur generally and specially on the ground of uncertainty to all three causes of action in the second amended complaint of plaintiff Gabriela Rodriguez (ROA 73), which are based on her dismissal from the nursing program of defendant Career Networks Institute, Inc. Plaintiff alleges that defendant Anne Gonzales was an employee of the co-defendant. (See SAC, ¶ 3.) <u>First cause of action for negligence against defendant Gonzales.</u> The first cause of action is for negligence, which is asserted only against defendant Gonzales. Actionable negligence is traditionally regarded as involving the following: (1) a legal duty to use due care; (2) a breach of that duty; and (3) the breach as the proximate or legal cause of the resulting injury. 6 Witkin, Summary of Cal. Law (11 ed. 2024), Torts § 961. The threshold element of a cause of action for negligence is the existence of a duty to use due care toward an interest of another that enjoys legal protection against unintentional invasion. <u>Greenberg v. Superior Court</u> (2009) 172 Cal.App.4th 1339, 1349. Courts have invoked the concept of duty to limit generally the otherwise potentially infinite liability that would follow from every negligent act. <u>Ibid.</u> Unlike the elements of breach, causation, and injury, all of which are fact-specific issues for the trier of fact, the existence and scope of a duty are questions of law. <u>Staats v. Vintner's Golf Club, LLC</u> (2018) 25 Cal.App.5th 826, 833.